Submission to the Joint Standing Committee on Electoral Matters

Executive Summary

Australia's electoral system is respected globally but faces growing challenges: online misinformation, aggressive third-party campaigning, declining public trust, and capacity pressures on the Australian Electoral Commission (AEC).
There has been much coverage of major party behaviour in campaign time, such as the removal and defacing of campaign signage and generally unpleasant volunteer behaviour at polling booths.

This submission draws on Wentworth-specific incidents and national reporting, including the ABC *7.30* segment of 28 May 2025, https://www.abc.net.au/news/2025-05-28/election-volunteers-say-they-experienced-abuse-and/105350306, to argue for reforms that protect integrity, transparency, and safety for voters and volunteers.

Key Recommendations:

- Stronger deterrents against impersonation or misleading conduct by volunteers or third-party groups
- Faster, more transparent AEC enforcement and communications during campaigns
- Expanded support for volunteer and voter safety at polling places
- Targeted truth-in-political-advertising provisions

Third Parties, Volunteers and Misleading Conduct

In Wentworth, volunteers from third party *Better Australia* wore yellow vests resembling those of AEC staff, labelled "Community Advisor". They stood near polling booths across the electorate and interacted with voters in a way that created the impression they were authorised officials. I have included in my submission a photo of one such volunteer wearing the vest to which I refer (*Attachment A*).

This incident undermined voter confidence and risked compromising perceptions of AEC neutrality. Complaints were lodged, yet no visible enforcement or clarification occurred during the polling period.

Recommendations:

- Amend the Commonwealth Electoral Act 1918 to explicitly prohibit volunteers or third-party campaigners from wearing apparel, insignia, or branding that could reasonably imply an official AEC role
- Resource the AEC to issue immediate public clarifications when such incidents occur
- Provide clear pre-election guidance for all campaigns on acceptable identifiers and booth conduct

The ABC *7.30* program (28 May 2025) reported widespread accounts of intimidation and verbal abuse of volunteers at polling booths across Australia. The report included interviews with experienced volunteers describing a noticeable deterioration in civility and the emotional toll of aggressive behaviour at voting centres.

This national evidence reinforces local observations in Wentworth that volunteer zones have become increasingly contested spaces, where breaching of rules and delayed enforcement can amplify stress, confusion, or intimidation for both voters and volunteer participants.

Recommendations:

- Introduce a national volunteer conduct code enforced by the AEC, defining behavioural standards, approved identifiers, and complaint-handling processes
- Establish a polling-place incident reporting system so that concerning behaviour can be logged and addressed in real time
- Include public-education messaging that distinguishes AEC officials from campaign volunteers

Timeliness and Transparency of AEC Enforcement

During the 2025 election period, a Wentworth resident printed and delivered roughly 47,000 brochures containing false and misleading information about my character and policies. It is well known that the brochure was not authorised and therefore the recipients had no means to assess the identity and motives of the person who produced it. Knowing the author of electoral materials is essential to electors being able to critically assess electoral materials.

Despite the scale and apparent breach of the Commonwealth Electoral Act 1918, the AEC did not identify the name of the person who had authored the brochure or seek any corrective action from the individual. My volunteers and I saw several people attend polling booths during the pre-polling period holding a copy of this brochure when entering the booth to vote.

Anecdotally, I was told that this brochure had influenced the opinion of some voters about my character and my policies during my first term in parliament.

If the person had been named at the time, then members of the public may also have come forward during the election period with relevant details, such as any political affiliations of the author or their motives.

The AEC’s subsequent investigation and decision to prosecute the author for Electoral Act breaches also took many months. By this time, the misinformation had already circulated widely and the election was over.

Whilst the result of the election in Wentworth was not so close that these pamphlets affected the electoral outcome, they may still have affected the outcome of individual votes. The vote of every elector deserves to be free from impairment caused by anonymous misleading materials.

Recommendations:

- Establish an Election Integrity Rapid Response Unit within the AEC to triage serious allegations of misleading or deceptive conduct during elections
- Enable the AEC to issue interim public statements or corrective notices within days, not months
- Mandate post-election publication of complaint statistics, resolution times, and enforcement outcomes to strengthen transparency

The *7.30* coverage on 28 May 2025 highlighted that delayed or insufficient AEC responses can heighten community frustration and erode trust, particularly where misinformation or aggressive behaviour is visible at polling places.
The Wentworth experience aligns with these broader findings and demonstrates the need for both faster response mechanisms and clearer public communications.

Conclusion

The experiences of voters and volunteers in Wentworth, together with the national evidence aired on ABC *7.30* (28 May 2025), underline that electoral integrity depends not only on legal compliance but also on public confidence and respectful conduct.

Stronger rules on volunteer identification, faster enforcement, and clearer communication from the AEC will help preserve that confidence and protect Australia's tradition of fair, transparent, and peaceful elections and encourage, not deter, participation.